

Court No. - 21

Case :- WRIT - C No. - 3804 of 2023

Petitioner :- Rajendra Gaur

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Sarvesh Kumar Singh

Counsel for Respondent :- C.S.C.,Chetan Chatterjee

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Sri Chetan Chatterjee, learned counsel for the respondent Bank seeks two days further time to complete his instructions.

List as fresh on 8.2.2023.

(Vikram D. Chauhan J.) (Manoj Kumar Gupta, J.)

Order Date :- 3.2.2023

Jaideep/-

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

The petitioner has challenged the recovery certificate dated 18.6.2019 issued by respondent no. 3 and the demand notice dated 29.3.2019 in relation to recovery of electricity dues in a case of theft of electricity.

Sri Chetan Chatterjee, learned counsel for the respondent Electricity Department, on instructions states that the impugned recovery has been withdrawn and that the respondents will pass a fresh order after providing opportunity of hearing to the petitioner.

Having regard to the above stand, the instant petition is disposed of with liberty to the respondents to pass a fresh order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 8.2.2023

Jaideep/-